SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1570 of 2021 (YEAR: 2020)

CORAM: INDIRA BANERJEE, M.R. SHAH

State of Kerala
... Appellant(s) / Petitioner(s)
Versus
Rajesh
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985
Sections:	Section 37 NDPS, Section 439 CrPC

JUDICIAL HEADNOTE & SUMMARY

Reiterated strict compliance with twin conditions under Section 37 NDPS before granting bail for commercial contraband, requiring satisfaction that accused is not guilty and unlikely to reoffend.

RATIO DECIDENDI

The Court held that: Reiterated strict compliance with twin conditions under Section 37 NDPS before granting bail for commercial contraband, requiring satisfaction that accused is not guilty and unlikely to reoffend. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in State of Kerala v. Rajesh (Criminal Appeal No. 1570 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, particularly Section 37 NDPS, Section 439 CrPC. Reiterated strict compliance with twin conditions under Section 37 NDPS before granting bail for commercial contraband, requiring satisfaction that accused is not guilty and unlikely to reoffend.

OPERATIVE ORDER

ORDER: Decided